

Amendment No. 1 to SB0965

Reeves
Signature of Sponsor

AMEND Senate Bill No. 965

House Bill No. 980*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 69, is amended by adding the following as a new section:

(a) A tourism development authority formed pursuant to this chapter owning a tract of real property, of which all or any portion thereof is contained within the incorporated territory of a municipality, may petition the municipality to deannex such property if the deannexation of the property does not create an area of unincorporated territory that is completely surrounded by municipal boundaries.

(b) The petition must include a map of the plat seeking deannexation.

(c) Upon receiving the petition for deannexation, the municipality shall:

(1) Determine the debt amount owed pursuant to § 6-51-204(a), if any, within thirty (30) days; and

(2) Forward a copy of the petition to each county legislative body that contains territory that is being deannexed for approval by the legislative body.

(d) The deannexation of the property becomes operative sixty (60) days after receipt of the petition by the municipality or upon approval by the county legislative body by a majority vote, whichever is later.

(e) Except for responsibility for debt newly contracted after the territory was annexed and prior to the surrender of jurisdiction, all municipal jurisdiction ceases over the territory excluded from the municipality's corporate limits on the operative date of the contraction accomplished through the petition described in this section.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.